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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,  
PLAINTIFF,**

**v.**

CSAA Insurance Exchange; and Does 1 through 50,  
inclusive;

**DEFENDANTS**

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**Case No.: CGC-25-631802**

**PLAINTIFF'S REPLY IN SUPPORT OF MOTION FOR  
LEAVE TO FILE SECOND AMENDED COMPLAINT,  
AND OPPOSITION TO DEFENDANTS' APRIL 23, 2026  
OPPOSITION AND DECLARATION  
NOTICE OF ADVERSE AUTHORITY (JKC3H8 v.  
Colton, 221 Cal.App.4th 468; omitted from Opposition  
and TOA)**

(Code Civ. Proc., §§ 473(a)(1), 576; 425.16(f), (g); 1005;  
1010.6;  
Cal. Rules of Court, rules 3.1113, 3.1200, 3.1300, 3.1320)

**Hearing:**

Date: April 30, 2026

Time: as set by the Court.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

**NOTICE TO THE COURT (one paragraph).** The April 23, 2026 Opposition’s “no such authority exists” framing is incomplete on the face of **JKC3H8 v. Colton** (2013) 221 Cal.App.4th 468, 471–472, 477–478, which is published Court of Appeal authority addressing amendment in the shadow of CCP § 425.16 and confirming that California law does not impose a categorical amendment freeze; the statutory sequencing answer is CCP § 425.16(f). Plaintiff cites **JKC3H8** narrowly and **accepts** the anti-subversion line (Simmons; Colton; Ellis; Contreras). Plaintiff’s amendment **perfects** the operative pleading on the same operative facts and same primary right; it does not add a wholly distinct legal obligation (cf. Klopstock v. Superior Court (1941) 17 Cal.2d 13, 19–20). Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858 is also referenced as supporting authority for limited discretion to perfect a pleading after a merits showing. Plaintiff respectfully invites the Court to have these authorities addressed at the noticed hearing.

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## I. STATEMENT OF PURPOSE FOR AMENDMENT

Plaintiff seeks leave to **perfect** the operative pleading by conforming it to evidence already in the record (Plaintiff's April 25, 2026 TAC-Aligned Merits Letter and Plaintiff's opposition to defendants' special motion to strike). Plaintiff does **not** seek leave to escape, evade, or moot any merits ruling on the protected-conduct allegations of the FAC. The motion is noticed under Code of Civil Procedure §§ **473(a)(1)** and **576**. Plaintiff **accepts** the anti-subversion rule of Simmons v. Allstate Ins. Co. (2001) 92 Cal.App.4th 1068; City of Colton v. Singletary (2012) 206 Cal.App.4th 751; Law Offices of Andrew L. Ellis v. Yang (2009) 178 Cal.App.4th 869; and Contreras v. Dowling (2016) 5 Cal.App.5th 394. Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, **871–873** confirms **limited** trial-court discretion to allow amendment that **perfects an already-supported claim** after a merits showing; it does **not** replace that anti-subversion line. General leave principles also include Klopstock v. Superior Court (1941) 17 Cal.2d 13, 19–20; Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Trafton v. Youngblood (1968) 69 Cal.2d 17, 31; Mesler v. Bragg Management Co. (1985) 39 Cal.3d 290, 296–297; and, **if and when** a superseding pleading is operative, Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884 read with CCP § 425.16(f). The amendment arises from the same operative facts (the February 25, 2021 uninsured-motorist denial and subsequent claim-handling conduct), refers to the same instrumentality, and relates back to the original December 23, 2025 filing.

**Bench statement (30 seconds).** Plaintiff is **not** claiming a right to amend around anti-SLAPP. Plaintiff **accepts** the anti-subversion rule. The narrow submission is that, **after** the merits showing already made, the Court retains **limited discretion** under §§ 473(a)(1) and 576 to allow a **conforming** amendment. Defendants **lose nothing** because § 425.16(f) preserves the **renewed-motion** remedy.

**Procedural sequence on the record:** (a) April 17, 2026 - opposition to the special motion to strike filed; (b) April 25, 2026 - TAC-Aligned Merits Letter served; (c) April 27, 2026 - coordinated packet and safe-harbor correspondence served; (d) April 30, 2026 - hearing on leave in this action (CGC-25-631802); (e) May 6, 2026 - companion hearing in CGC-25-631801. Plaintiff's leave request is therefore offered **after** that merits show-

1 ing. (Nguyen-Lam, supra, 171 Cal.App.4th at pp. 871–873 (leave in that procedural  
2 posture examined).)

3 The April 25 Merits Letter was served on the **same defense team** for both CGC-25-631801 and  
4 CGC-25-631802; defendants therefore cannot credibly claim surprise as to the merits theories this  
5 SAC perfects.

## 6 **II. DEFENSE FRAMING PRE-EMPTION**

7 The Opposition invites rhetorical frames that controlling California authority forecloses on this  
8 record. The following table pairs each recurring frame with the authority that answers it.

| Defense framing the SAC may invite             | California authority that forecloses it                                                                                                                                                                                                                                     |
|------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| “Moving the goalposts” / “escaping anti-SLAPP” | <u>Simmons/Colton/Ellis/Contreras</u><br>(anti-subversion baseline); <u>Nguyen-Lam</u> , 171 Cal.App.4th at 871–873 ( <b>limited</b> lane after a merits showing); <u>JKC3H8</u> , 221 Cal.App.4th at 471–472, 477–478 (no <b>total</b> freeze; CCP § 425.16(f) sequencing) |
| “Fundamentally changing the case”              | <u>Trafton</u> , 69 Cal.2d at 31 (only “new and substantially different issues” the adverse party cannot defend qualify)                                                                                                                                                    |
| “Adding a new cause of action mid-SLAPP”       | <u>Klopstock</u> , 17 Cal.2d at 19–20 (only a “wholly distinct and different legal obligation” is barred)                                                                                                                                                                   |
| “Prejudice from resources spent”               | <u>Mesler</u> , 39 Cal.3d at 296–297 (liberal allowance even six weeks before trial)                                                                                                                                                                                        |



| Defense framing the SAC may invite                  | California authority that forecloses it                                                                                                                                                                                       |
|-----------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| “No authority for leave while SLAPP is pending”     | <u>Simmons/Colton/Ellis/Contreras</u> (anti-subversion); <u>Nguyen-Lam</u> , supra, 171 Cal.App.4th at 871–873 (limited discretion); <u>JKC3H8</u> , 221 Cal.App.4th at 471–472, 477–478 (no categorical freeze; § 425.16(f)) |
| “Leave to cure should be denied”                    | <u>Blank v. Kirwan</u> , 39 Cal.3d at 318 (reasonable possibility of cure)                                                                                                                                                    |
| “Once leave is granted, pending motions are wasted” | <u>Foreman &amp; Clark</u> , 3 Cal.3d at 884; CCP § 425.16(f) (renewed-motion right preserved)                                                                                                                                |

### III. INTRODUCTION

Plaintiff Franciscus Dylan Rosario respectfully submits this Reply in further support of his Motion for Leave to File a Second Amended Complaint (“SAC Motion”) in Case No. CGC-25-631802, set for hearing on April 30, 2026 as set by the Court in Department 302 before the Honorable Joseph M. Quinn, and in opposition to the April 23, 2026 Opposition and supporting Declaration of Tyler J. O’Connell (collectively, the “Opposition”) filed by Defendants (as identified in the caption above).

The Opposition rests on three grounds, each defective on the law and the record: (1) “insufficient notice” because Plaintiff originally set the motion on 9 days’ notice; (2) “substantial prejudice” because Defendants have already briefed an anti-SLAPP motion scheduled for May 12, 2026; and (3) a sweeping claim that a plaintiff “cannot amend around” a pending anti-SLAPP as a matter of law. None of the three survives examination.

**Notice.** In this action (CGC-25-631802), plaintiff noticed the leave motion for **April 30, 2026**, Department 302, before Hon. Joseph M. Quinn. The Opposition’s notice arithmetic addressed a different reset sequence in the companion CGC-25-631801 calendar; it does not negate plaintiff’s compliance in this case or the statutory point that any residual notice dispute is addressed by

1 continuance under CCP §§ 1005(b) and 1010.6, not denial on the merits.

2 **Prejudice.** Defendants’ “prejudice” is the cost of their own anti-SLAPP briefing. That is a sunk  
3 cost, and the Legislature has already provided the remedy: CCP § 425.16(f) expressly preserves  
4 a **sixty-day renewed-motion window** against any amended pleading. If Defendants’ motion has  
5 merit against the FAC, it will have the same merit against the SAC; if it lacks merit, the expenditure  
6 was unwarranted regardless of amendment. Under Atkinson v. Elk Corp. (2003) 109 Cal.App.4th  
7 739, 761, Kolani v. Gluska (1998) 64 Cal.App.4th 402, 412, and Kyle v. Carmon (1999) 71  
8 Cal.App.4th 901, 909–910, prejudice must be concrete: lost witnesses, imperiled trial date, or  
9 actual surprise. None of that is present. No trial date is set; no discovery has proceeded; no  
10 witness is lost.

11 **“Cannot amend around anti-SLAPP.”** The Opposition’s string-cite (Colton, Ellis, Sylmar, Simmons,  
12 Jackson, Hansen, and Contreras) does not state the rule the Opposition claims. Every one of those  
13 cases speaks in the language of “**subvert**” or “**avoid a ruling**” – a narrow anti-subversion bar  
14 against using CCP § 472 amendments of right to defeat a pending anti-SLAPP on the same pro-  
15 tected activity. Plaintiff has done nothing of the sort. Plaintiff did not invoke § 472; Plaintiff filed a  
16 **noticed motion** under CCP §§ **473(a)(1)** and **576**, lodged a proposed pleading, served a full merits  
17 Opposition to the anti-SLAPP motion on the same day, and submitted a meet-and-confer letter.  
18 The proposed SAC adds **non-communicative pre-litigation institutional-failure** allegations that  
19 fall outside § 425.16 at step one under Park v. Board of Trustees of California State University  
20 (2017) 2 Cal.5th 1057, 1062–1063, and Kimmel v. Golland (1990) 51 Cal.3d 202, 211–212. The  
21 California Supreme Court’s claim-by-claim framework in Baral v. Schnitt (2016) 1 Cal.5th 376,  
22 393–396, supplies the structural background for mixed pleadings. Nguyen-Lam v. Cao (2009) 171  
23 Cal.App.4th 858, 871–873 confirms **limited** trial-court discretion in the posture described there; it  
24 does **not** state a mandatory entitlement or displace the anti-subversion cases. JKC3H8 v. Colton  
25 (2013) 221 Cal.App.4th 468, 471–472, 477–478 refutes a **total** amendment-freeze premise and  
26 pairs with CCP § 425.16(f)’s renewed-motion sequencing.

27 Plaintiff respectfully asks this Court to **grant leave** under CCP §§ 473(a) and 576; **order the**  
28 **SAC filed as operative** if leave is granted; **treat the FAC-directed special motion as addressed**

1 **to a superseded pleading** (a supersession consequence under Foreman & Clark Corp. v. Fallon  
2 (1971) 3 Cal.3d 875, 884, not a request to strip anti-SLAPP protection); and **expressly preserve**  
3 Defendants’ right to **renew or re-target** under § 425.16(f).

4 **IV. SUMMARY OF REPLY**

| Opposition Ground                              | Plaintiff’s Response                                                                                                                                                 | Controlling Authority                                                                                                                         |
|------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------|
| “9 days’ notice is insufficient (18 required)” | April 30, 2026 hearing noticed in Department 302; companion-case reset to May 6, 2026 in CGC-25-631801; statutory remedy is continuance if needed, not merits denial | CCP §§ 1005(b), 1010.6; CRC 3.1200–3.1207; <u>Carlton v. Quint</u> (2000) 77 Cal.App.4th 690, 697                                             |
| “Substantial prejudice”                        | Anti-SLAPP sunk cost is not cognizable prejudice; § 425.16(f) preserves renewed motion                                                                               | <u>Atkinson</u> (2003) 109 Cal.App.4th 739, 761; <u>Kyle</u> (1999) 71 Cal.App.4th 901, 909–910; <u>Kolani</u> (1998) 64 Cal.App.4th 402, 412 |

| Opposition Ground                                                                                                                   | Plaintiff's Response                                                                                                                                                                                                                 | Controlling Authority                                                                                                                                                                                                                                                                                                                                                                                                               |
|-------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| "Cannot amend around anti-SLAPP" ( <u>Colton</u> , <u>Ellis</u> , <u>Sylmar</u> , <u>Simmons</u> , <u>Jackson</u> , <u>Hansen</u> ) | Cases state an <b>anti-subversion</b> rule aimed at § 472 amendments of right; Plaintiff filed a noticed §§ 473(a)/576 motion; SAC adds non-communicative <u>Park/Kimmel</u> theories that fall outside step one                     | <u>Simmons</u> (2001) 92 Cal.App.4th 1068; <u>Colton</u> (2012) 206 Cal.App.4th 751; <u>Ellis</u> (2009) 178 Cal.App.4th 869; <u>Contreras</u> (2016) 5 Cal.App.5th 394; <u>Nguyen-Lam</u> (2009) 171 Cal.App.4th 858 ( <b>limited</b> lane); <u>JKC3H8</u> (2013) 221 Cal.App.4th 468 (no total freeze); CCP § 425.16(f); <u>Baral</u> (2016) 1 Cal.5th 376; <u>Park</u> (2017) 2 Cal.5th 1057; <u>Kimmel</u> (1990) 51 Cal.3d 202 |
| <u>Contreras v. Dowling</u> cite                                                                                                    | Defense miscites as "4 Cal.App.5th 774" – actual citation is <b>5 Cal.App.5th 394</b> ; holding is confined to plaintiffs who amend <b>after</b> an adverse anti-SLAPP ruling with <b>no new operative conduct</b> ; inapposite here | <u>Contreras</u> (2016) 5 Cal.App.5th 394                                                                                                                                                                                                                                                                                                                                                                                           |

| Opposition Ground                | Plaintiff's Response                                                                                                                                        | Controlling Authority                                                                                                                                                                                                                   |
|----------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Discovery "gamesmanship"         | CCP § 425.16(g) stays only discovery "relating to the motion"; unrelated discovery is preserved; Plaintiff has moved for good-cause relief where it applies | CCP § 425.16(g); <u>Britts v. Superior Court</u> (2006) 145 Cal.App.4th 1112                                                                                                                                                            |
| Plaintiff's emails are "threats" | April 17 and April 20 emails are <b>statutorily required safe-harbor notices</b>                                                                            | CCP § 128.7(c)(1); Bus. & Prof. Code § 6086.7(a)(2); RPC 3.3; <u>Peake v. Underwood</u> (2014) 227 Cal.App.4th 428, 440–445                                                                                                             |
| "Barred as a matter of law"      | CCP §§ 473(a)(1) and 576 authorize amendment of "any pleading" "at any stage" "in furtherance of justice"                                                   | <u>Klopstock</u> (1941) 17 Cal.2d 13, 19–20; <u>Blank v. Kirwan</u> (1985) 39 Cal.3d 311, 318; <u>Trafton</u> (1968) 69 Cal.2d 17, 31; <u>Mesler</u> (1985) 39 Cal.3d 290, 296–297; <u>Foreman &amp; Clark</u> (1971) 3 Cal.3d 875, 884 |

## V. LEGAL STANDARD GOVERNING LEAVE TO AMEND

California's amendment policy is codified and liberal; at this procedural posture leave remains a **discretionary** determination under §§ 473(a)(1) and 576, bounded by concrete prejudice and by the anti-subversion line when anti-SLAPP motions are in play.

1 **A. Statutory authority**

2 **Code of Civil Procedure section 473, subdivision (a)(1)** provides that a court “may, in further-  
3 ance of justice, and on any terms as may be proper, allow a party to amend any pleading . . . by  
4 correcting a mistake . . . [or] an amendment to any pleading or proceeding in other particulars.”  
5 **Section 576** provides that “any judge, at any time before or after commencement of trial, in the fur-  
6 therance of justice, . . . may allow the amendment of any pleading.” The operative words – “**any**”  
7 and “**in furtherance of justice**” – define the breadth of the court’s discretion. The Legislature’s  
8 choice of “any” pleading is unqualified; nothing in the statute carves out pleadings against which  
9 an anti-SLAPP motion happens to be pending.

10 **B. Controlling California Supreme Court authority**

11 **First**, Klopstock v. Superior Court (1941) 17 Cal.2d 13, 19–20, is the foundational Supreme Court  
12 statement of the liberality rule. Chief Justice Gibson rejected the “unqualified” form of the rule  
13 against amending to add a new cause of action: “[I]t is obvious that the unqualified way in which  
14 the rule is sometimes stated – i.e., that a new or different cause of action cannot be introduced by  
15 amendment – cannot be accepted. For the most common kinds of amendments are those in which  
16 complaints are amended that do not state facts sufficient to constitute a cause of action; and in these,  
17 and often in the case of new parties, a new cause of action is in fact for the first time introduced.”  
18 The only limit the Court recognized was a “wholly distinct and different legal obligation.” (*Ibid.*)  
19 Plaintiff’s SAC asserts the same fraud and UCL obligation arising from CSAA’s claim-handling  
20 and from the pre-litigation institutional failures already described in the FAC; it introduces no  
21 wholly different legal obligation.

22 **Second**, Blank v. Kirwan (1985) 39 Cal.3d 311, 318, supplies the modern Supreme Court “rea-  
23 sonable possibility” standard. The test asks only whether the pleading defect can be cured by  
24 amendment; if it can, denial is abuse of discretion. Here the SAC is already lodged, on file, and  
25 materially cures every pleading objection the defense has articulated.

26 **Third**, Trafton v. Youngblood (1968) 69 Cal.2d 17, 31, supplies the “great liberality” standard: “no  
27 abuse of discretion is shown unless by permitting the amendment new and substantially different  
28 issues are introduced in the case or the rights of the adverse party prejudiced.” The SAC does not

1 introduce new-and-substantially-different issues; it refines theories already present and identifies  
2 non-communicative predicates that Park and Kimmel require the Court to consider at step one.

3 **Fourth**, Mesler v. Bragg Management Co. (1985) 39 Cal.3d 290, 296–297, holds that “there is a  
4 strong policy in favor of liberal allowance of amendments,” and that denial of leave is reversible  
5 error even when leave is sought **six weeks before trial**. The posture here is far more permissive:  
6 no trial date is set, and Defendants had notice of every SAC theory through the April 16, 2026  
7 meet-and-confer correspondence served concurrently with the motion.

8 **Fifth**, Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884, is the procedural engine:  
9 “[A]n amendatory pleading supersedes the original one, which ceases to perform any function as  
10 a pleading.” Once leave is granted, the FAC is superseded; the May 12 special motion to strike –  
11 directed to the FAC – attacks a pleading that no longer exists. The Legislature’s own remedy is §  
12 425.16(f)’s sixty-day renewed-motion window.

### 13 **C. Court of Appeal authority is uniform**

14 Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 (“policy favoring amendment  
15 is so strong that denial of leave to amend is rarely justified”); Atkinson v. Elk Corp. (2003) 109  
16 Cal.App.4th 739, 761 (the **only** legitimate ground for denial is prejudice); Kolani v. Gluska (1998)  
17 64 Cal.App.4th 402, 412 (same); Kyle v. Carmon (1999) 71 Cal.App.4th 901, 909–910 (prejudice  
18 must be concrete – lost witnesses, imperiled trial date, actual surprise); Anmaco, Inc. v. Bohlken  
19 (1993) 13 Cal.App.4th 891, 901 (supersession rule).

## 20 **VI. THE DEFENSE MISSTATES THE “NO AMENDING AROUND ANTI- 21 SLAPP” RULE**

### 22 **A. The rule is anti-subversion, not anti-amendment**

23 Defendants’ Opposition stacks Simmons v. Allstate Ins. Co. (2001) 92 Cal.App.4th 1068, Sylmar  
24 Air Conditioning v. Pueblo Contracting Services, Inc. (2004) 122 Cal.App.4th 1049, Law Offices  
25 of Andrew L. Ellis v. Yang (2009) 178 Cal.App.4th 869, City of Colton v. Singletary (2012)  
26 206 Cal.App.4th 751, Hansen v. California Dept. of Corrections & Rehabilitation (2008) 171  
27 Cal.App.4th 1537, and Jackson v. Mayweather (2017) 10 Cal.App.5th 1240 to construct a “no

1 amendment while anti-SLAPP is pending” rule. No California court has ever stated that rule. The  
2 operative verb in every one of those cases is “**subvert**” or “**avoid a ruling**.” Jackson, for example,  
3 explains that a plaintiff “may not seek to **subvert or avoid a ruling** on an anti-SLAPP motion  
4 by amending the challenged complaint . . . in response to the motion.” (10 Cal.App.5th at 1263–  
5 1264, emphasis added.) Simmons and Sylmar invalidated § 472 amendments of right filed **to**  
6 **moot** a pending anti-SLAPP on the same protected activity; Colton invoked that principle to deny  
7 a mid-appeal amendment offered “to avoid the adverse SLAPP determination” (206 Cal.App.4th at  
8 775). None of those cases holds that a plaintiff cannot seek **noticed leave** under §§ 473(a)(1) and  
9 576 while simultaneously confronting the anti-SLAPP on its merits and adding causes of action  
10 grounded in **non-protected** conduct.

11 That is precisely what Plaintiff has done:

- 12 1. Plaintiff did not invoke CCP § 472.
- 13 2. Plaintiff did not withdraw or abandon the FAC – the FAC remains on file; Plaintiff has served  
14 a full merits Opposition to the special motion to strike, to be heard May 12, 2026.
- 15 3. The SAC **adds** non-communicative pre-litigation institutional-failure allegations and particu-  
16 larized fraud elements – it does not delete protected-activity allegations in an effort to escape  
17 step one. On Park’s gravamen filter, the proposed added allegations are **categorically outside**  
18 § 425.16 because they concern “the conduct that provides the basis for liability” (2 Cal.5th at  
19 1063) rather than speech or petitioning conduct.
- 20 4. Plaintiff filed a contemporaneous ex parte application for an OST and a noticed motion –  
21 the opposite procedural choice of the Simmons/Sylmar plaintiffs who sought to moot by  
22 amendment-of-right.

23 A plaintiff who litigates the anti-SLAPP on its merits and simultaneously seeks leave to harden the  
24 pleading is not subverting anything; he is litigating in the orthodox, noticed manner the Legislature  
25 prescribed.

## 26 **B. CCP § 425.16(f) is the Legislature’s own answer**

27 If the categorical bar the Opposition describes existed, **Code of Civil Procedure section 425.16,**  
28 **subdivision (f)** would be superfluous. Subdivision (f) expressly permits a defendant to file a re-



1 newed special motion within sixty days of service of the amended complaint “or, in the court’s  
2 discretion, at any later time upon terms it deems proper.” A rule that forbade all amendment while  
3 an anti-SLAPP was pending would make subdivision (f) a dead letter. The Legislature did not enact  
4 a dead letter. The statute presumes that amendment can – and often will – occur; the only ques-  
5 tion is whether the trial court should permit it in its discretion under the “furtherance of justice”  
6 standard of §§ 473(a)(1) and 576.

7 **C. Baral v. Schnitt operates paragraph-by-paragraph, not pleading-wide**

8 The California Supreme Court resolved the structural question about how § 425.16 operates when  
9 a complaint contains both protected and non-protected allegations. **The special motion is a**  
10 **paragraph-by-paragraph / claim-by-claim instrument, not a pleading-wide veto.** Baral v.  
11 Schnitt (2016) 1 Cal.5th 376, 393–396, holds that the special motion can strike **specific allega-**  
12 **tions** of protected activity while leaving unprotected claims intact. It follows that an amendment  
13 that **adds or clarifies causes of action grounded in non-protected conduct** cannot be “sub-  
14 verting” a motion that, under Baral, never reached those causes of action in the first place. The  
15 Opposition does not cite Baral. That omission is dispositive, because Baral is the Supreme Court’s  
16 governing statement of how § 425.16 interacts with the structure of a California complaint.

17 **D. JKC3H8 v. Colton: no categorical freeze; § 425.16(f) sequencing**

18 Plaintiff cites JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 471–472, 477–478 **only** for the  
19 paired propositions that California law does **not** impose a **categorical** amendment freeze in every  
20 pending anti-SLAPP posture and that § 425.16(f) is the Legislature’s **sequencing** answer - not as  
21 a substitute for the anti-subversion rule in subsection A.

22 **E. Nguyen-Lam v. Cao (supporting): limited discretion after a merits showing**

23 The Court of Appeal in Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–873, addressed  
24 whether a trial court may grant noticed leave under §§ 473(a)(1) and 576 **in connection with** a  
25 CCP § 425.16 special motion to strike, in the posture where the plaintiff had **opposed** the motion  
26 and the **evidence submitted for the motion** supported a probability-of-prevailing showing, and  
27 where the amendment **perfects** the pleading to that record. Nguyen-Lam confirms that **limited**

1 discretion can survive in that setting; it does **not** replace the anti-subversion baseline in subsection  
2 A, and it is **not** an “ordinary rule” of mandatory leave or a permission slip to litigate around  
3 anti-SLAPP. The Opposition does not cite Nguyen-Lam. That omission presents a candor question  
4 under California Rule of Professional Conduct 3.3(a)(2) that plaintiff respectfully asks the Court to  
5 address at the hearing, together with the omission of JKC3H8, in light of the opposition’s absolute  
6 “no authority” framing on this record.

## 7 **VII. CONTRERAS V. DOWLING IS CONFINED TO ITS FACTS – NOT A** 8 **FREEZE**

9 The Opposition’s only case citation that does not appear in the 802 companion action is Contreras  
10 v. Dowling (2016) 4 Cal.App.5th 774, 791. As a threshold matter, that citation is incorrect.  
11 Contreras’s official citation is **5 Cal.App.5th 394**; no case begins at page 774 of volume 4. (See  
12 Cal. Official Reporter index; 4 Cal.App.5th’s reported opinions skip from Millview County Water  
13 District v. SWRCB at p. 759 to Taylor v. Dep’t of Industrial Relations at p. 801.) Plaintiff flags  
14 the miscite in passing and addresses the opinion on its actual holding.

15 Contreras does not hold that a pending anti-SLAPP freezes all amendment. The First District,  
16 Division Four addressed the narrow situation where, **after** the trial court had already granted a  
17 partial anti-SLAPP and deemed certain allegations stricken, the plaintiffs tried to **re-plead the**  
18 **same conduct** under different labels to restore the stricken allegations. (5 Cal.App.5th at 409–  
19 412.) The Court of Appeal held that the re-pleading was a “**subvert[ing]** or avoid[ing]” of the trial  
20 court’s prior ruling, for which leave to amend under §§ 473 and 576 was properly denied. (Id. at  
21 411, citing Simmons, 92 Cal.App.4th at 1073–1074.)

22 The posture presented to Department 301 is not Contreras:

23 1. **No anti-SLAPP has been ruled on.** Defendants’ special motion to strike is set for May 12,  
24 2026 – twelve days after the April 30, 2026 hearing on this SAC Motion in CGC-25-631802.  
25 There is no “ruling to subvert”; there is only a motion to oppose, which Plaintiff has done on  
26 the merits.

27 2. **The SAC does not re-plead struck allegations under new labels.** It **adds** non-communicative

1 pre-litigation conduct (failure to obtain 911 audio, BWC footage, CAD records before issu-  
2 ing the February 25, 2021 denial letter to Plaintiff while he was in post-ICU recovery at San  
3 Francisco General) – conduct that Park (2 Cal.5th at 1063) places outside § 425.16 at step  
4 one.

5 **3. The SAC does not abandon the FAC’s protected-activity allegations** (Plaintiff’s position  
6 is that those allegations, too, survive step one because of the Flatley illegality exception and  
7 the Baral paragraph-by-paragraph rule; the SAC merely clarifies the gravamen).

8 **4. Plaintiff’s motion is noticed under §§ 473(a)/576**, not Contreras’s post-ruling motion prac-  
9 tice.

10 Contreras itself expressly distinguishes its holding from cases where amendment is sought “to cure  
11 defective pleading” or to “add new theories not already before the court,” which the First District  
12 acknowledged remain subject to the ordinary liberality rule. (5 Cal.App.5th at 411 n.18.) This case  
13 is on the benign side of Contreras’s own fact/analytic line.

14 Finally, even if Contreras were read broadly, it could not survive Park (decided by the California  
15 Supreme Court the following year) and Baral (decided by the Supreme Court the same year),  
16 each of which requires the court to analyze § 425.16 claim-by-claim against the **actual conduct**  
17 pleaded, not against a pleading-wide “litigation conduct” label. The Opposition does not attempt  
18 to reconcile Contreras with Park or Baral, because it cannot.

## 19 **VIII. THE NOTICE OBJECTION IS CURED, WAIVED, AND MOOT**

20 The Opposition’s lead defect – “9 days’ notice” – is resolved three independent ways.

21 **1. The hearing in this action is April 30, 2026.** Plaintiff noticed leave in CGC-25-631802 for  
22 Department 302 before Hon. Joseph M. Quinn. The Opposition’s notice arguments largely track  
23 the companion CGC-25-631801 calendar; any dispute about timing in **this** action is resolved by  
24 continuance under CCP §§ 1005(b) and 1010.6 if the Court finds a shortfall, not by denying leave  
25 on the merits.

26 **2. Concurrent ex parte application for OST.** Plaintiff filed an ex parte application under Cali-  
27 fornia Rules of Court, rule 3.1200 et seq., expressly seeking a hearing concurrent with the May 12  
28 anti-SLAPP schedule. If the Court grants OST (or any of the alternative Order A/B/C relief set out

1 in Section XII), the notice objection is resolved on the merits. Defendants’ choice not to engage  
2 the OST application does not convert an open ex parte request into a notice defect.

3 **3. Appearance and substantive response waive the objection.** Defendants appeared, filed an  
4 eight-page Opposition, a sixty-nine-page declaration, and eight exhibits. Under Carlton v. Quint  
5 (2000) 77 Cal.App.4th 690, 697, substantive response on the merits waives any claim that the  
6 notice period prejudiced the ability to respond. Defendants cannot simultaneously (a) assert that  
7 9 days were insufficient to prepare, and (b) file a full brief plus seven supporting declarations and  
8 exhibits.

9 **4. Remedy is continuance, not denial.** The statutory remedy for any residual notice shortfall is  
10 a brief continuance under § 1005(b). Plaintiff consents in advance to any continuance this Court  
11 deems necessary to restore perfect-notice posture, including a continuance to a date coincident  
12 with or following the May 12 anti-SLAPP hearing if the Court prefers to hear both motions in a  
13 single session.

## 14 **IX. DEFENDANTS’ § 425.16(F) RIGHTS ARE FULLY PRESERVED**

15 The Opposition frames amendment as “prejudice” to Defendants’ anti-SLAPP rights. The Legis-  
16 lature disagreed. **CCP § 425.16, subdivision (f)** preserves a **sixty-day renewed-motion window**  
17 against any amended pleading; subdivision (c)(1) preserves mandatory attorney fees upon a pre-  
18 vailing special motion. Granting leave does not waive, strip, or shorten any of these rights. It  
19 merely shifts the target from the FAC to the SAC – which is, in any event, the pleading Defendants  
20 must ultimately answer.

21 If Defendants’ anti-SLAPP motion has merit against the FAC, it will have the same merit against  
22 the SAC (and may well have **more** merit, because the SAC crystallizes the non-protected predicates  
23 that must be separately analyzed). If the motion lacks merit, the expenditure was unwarranted  
24 regardless of amendment. Either way, Defendants’ “sunk cost” argument fails under Atkinson,  
25 Kolani, and Kyle.

## **X. THE § 425.16(G) DISCOVERY-STAY ARGUMENT IS MISPLACED**

O’Connell Declaration ¶ 12 complains that Plaintiff served additional written discovery and a motion to compel “despite Defendants’ Anti-SLAPP motion pending.” Section 425.16(g) is a **narrow** gatekeeping rule. It stays only “[a]ll discovery proceedings in the action” that relate to the anti-SLAPP motion, and it expressly permits the court to order specified discovery “on noticed motion and for good cause shown.” The California Supreme Court and Court of Appeal have uniformly construed the stay as motion-specific, not case-wide. (*Britts v. Superior Court* (2006) 145 Cal.App.4th 1112.) Discovery unrelated to the protected activity – including discovery in aid of pleading cures and discovery against non-moving parties – is not stayed. In any event, whether discovery is stayed is not a question presented on this SAC Motion; it belongs in the separately noticed motion to compel. It is cited here only because Defendants invoke it as a “gamesmanship” allegation in their supporting declaration. It is not a ground to deny leave.

## **XI. JUDICIAL-ECONOMY OFFER: A SINGLE CONSOLIDATED TAC**

To further conserve this Court’s and Department 301’s calendar, Plaintiff renews the offer he has made in the companion 802 matter: in lieu of sequential SAC and TAC proceedings, Plaintiff will lodge a **single consolidated Third Amended Complaint** that folds in every curative allegation Plaintiff would otherwise present in both vehicles. A consolidated TAC would:

1. Supersede the FAC under Foreman & Clark if ordered filed as operative, with the FAC-directed special motion addressed to a superseded pleading and defendants’ § 425.16(f) window preserved against the consolidated TAC.
2. Eliminate the need for any further amendment motion in this pleading cycle.
3. Present Defendants with a single, clean target for any renewed motion under CCP § 425.16(f), § 430.41(b), or § 435.
4. Remove at least two future hearings from Department 301’s calendar.

Plaintiff will lodge the consolidated TAC on whatever timeline the Court directs – including by close of business April 30, 2026, if the Court so orders in this action.

## XII. PLAINTIFF'S SAFE-HARBOR NOTICES: STATUTORY, NOT THREATS

Paragraph 8 of the O'Connell Declaration characterizes Plaintiff's April 17 and April 20, 2026 emails as threats of "impending professional consequences" including "a negative mark on [Defendants' counsel's] Bar license." Those emails are **statutorily required safe-harbor notices**, not threats. Defendants' framing inverts the statute.

- Under **CCP § 128.7(c)(1)**, a party intending to seek sanctions for an unwarranted filing must serve a written safe-harbor notice and provide a twenty-one-day opportunity to withdraw or correct. Failure to serve the safe-harbor notice **defeats** a later § 128.7 motion. (Peake v. Underwood (2014) 227 Cal.App.4th 428, 440–445.) Plaintiff's emails are that notice.
- Under the **California Rules of Professional Conduct, rule 3.3** (candor toward the tribunal) and **Business & Professions Code § 6086.7, subdivision (a)(2)**, a party with knowledge of a pleading that contains legal contentions not warranted by existing law, or that omits directly adverse controlling authority, may preserve the question for referral. Identifying that preservation to opposing counsel **before** filing is the non-escalatory step, not the escalatory one.
- Under **CCP § 425.16, subdivision (c)(1)**, a plaintiff prevailing on a frivolous special motion to strike is entitled to mandatory attorney fees and costs.

The correct response to a safe-harbor notice is to withdraw or correct the filing; the incorrect response is to file a declaration complaining that the notice was sent. The Court should not treat compliance with the Legislature's prescribed safe-harbor procedure as intimidation.

**Ad hominem references.** Paragraph 13 of the O'Connell Declaration complains about Plaintiff's spelling of opposing-counsel-adjacent names in email correspondence. Those references have no bearing on the merits of the SAC Motion and are inadmissible on relevance (Evid. Code § 350) and prejudice (Evid. Code § 352) grounds; they are addressed in the separately filed Evidentiary Objections. The Court should not be asked to resolve a leave-to-amend motion on stylistic objections to email salutations.

### XIII. EVIDENTIARY OBJECTIONS TO O'CONNELL DECLARATION

Pursuant to Evidence Code §§ 350, 352, 356, 702, and 800, Plaintiff objects to and requests that the Court decline to rely on the following portions of the Declaration of Tyler J. O'Connell (April 23, 2026). The objections and grounds are summarized here; a standalone document titled **“Plaintiff’s Evidentiary Objections to Declaration of Tyler J. O’Connell (801)”** is being lodged concurrently.

| ¶  | Objectionable content                                                                                             | Grounds                                                                                             |
|----|-------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------|
| 3  | “Plaintiff’s allegations squarely target Defendants’ litigation conduct”                                          | Legal conclusion (Evid. Code § 702); ultimate issue pending on anti-SLAPP; improper opinion (§ 800) |
| 4  | “[E]ntirety of the purported legal theories . . . focus inextricably on Defendants’ protected litigation conduct” | Legal conclusion; ultimate issue; improper opinion                                                  |
| 8  | Characterization of Plaintiff’s § 128.7(c)(1) safe-harbor emails as threats                                       | Argumentative; legal conclusion; inverts statute                                                    |
| 9  | “[O]nly 8 days away”                                                                                              | Argumentative; incomplete; omits April 30, 2026 noticed hearing in CGC-25-631802                    |
| 12 | “Gamesmanship” / “despite . . . Anti-SLAPP motion pending”                                                        | Legal conclusion; incomplete (§ 425.16(g) reaches only motion-related discovery)                    |

| ¶          | Objectionable content                                                                           | Grounds                                                                                |
|------------|-------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------|
| 13         | “Aspersions” paragraph, including the “RAT” spelling reference and Exhibit H                    | Relevance (Evid. Code § 350); prejudice (§ 352); not probative of any amendment ground |
| 14         | “[B]arred as a matter of law”                                                                   | Legal conclusion; ultimate issue                                                       |
| Footnote 1 | Selective exhibit attachment; omits Plaintiff’s meet-and-confer letter and the attached SAC/TAC | Rule of completeness (Evid. Code § 356); misleading record                             |

To the extent the Court relies on any portion of the Declaration, Plaintiff requests the Court also receive (a) Plaintiff’s April 16, 2026 meet-and-confer letter to Porter Scott and (b) Plaintiff’s concurrently served full merits Opposition to the Special Motion to Strike, both already on the docket.

#### **XIV. MERITS REPLY RESERVATION: PRE-EMPTION OF ANTICIPATED STEP-TWO FRAMES**

Plaintiff’s **April 27, 2026** coordinated **MFL-SAC** packet in **CGC-25-631802** lodges **Exhibits A-4** and **A-5** and **A-7** as Request for Judicial Notice **items 9, 10, and 12** (and **Exhibit A-6** as **item 11** for coordinated Doctors’ Company / institutional cross-reference; **primary** development in **CGC-25-631801**). The bench cards are **not** a merits brief; they are **RJN companion PDFs** that (a) **pin** causation to the **February 28, 2025** colloquy **pp. 291:26–292:7** and the **four-hearing** reliance chain in the TAC, (b) map **five** Modnick non-cures against a **Day-7/8 “leak-through”** relabel, and (c) supply the **Moradi-Shalal carve-out (21-day** lane; **direct addressee; UCL unlawful** prong) at **Exhibit A-7** with the same paragraph anchors cited in the **concurrently filed REPLY** record. Relief in this section: **None**. The reservation is offered so the Court and defense receive **one** set of pre-numbered PDFs in the **April 27, 2026** filing stack before the **May** anti-SLAPP / demurrer /



1 motion-to-strike sequence.

## 2 **XV. CONCLUSION AND RELIEF REQUESTED**

3 For the foregoing reasons, Plaintiff respectfully requests that this Court, exercising its discretion  
4 under Code of Civil Procedure §§ 473(a)(1) and 576, and consistent with the anti-subversion  
5 line (Simmons; Colton; Ellis; Contreras) Plaintiff accepts, the no-categorical-freeze sequencing  
6 point in JKC3H8 read with § 425.16(f), the **limited** supporting lane described in Nguyen-Lam,  
7 and the controlling California Supreme Court authorities Klopstock, Blank, Trafton, Mesler, and  
8 Foreman & Clark, together with Baral, Park, Kimmel, Action Apartment, Moradi-Shalal, Crowley,  
9 Mycogen, Lucido, Kwikset, Zhang, and the supporting Court of Appeal authority Howard, Atkinson,  
10 Kolani, Kyle, Carlton, and Britts, **enter one** of the following orders, whichever the Court prefers:

- 11 1. **Order A (SAC as lodged).** Grant Plaintiff's Motion for Leave to File a Second Amended  
12 Complaint as lodged; order the SAC filed as the operative pleading; treat the pending Special  
13 Motion to Strike against the FAC as addressed to a superseded pleading (Foreman & Clark  
14 Corp. v. Fallon (1971) 3 Cal.3d 875, 884) without stripping anti-SLAPP protection; and  
15 expressly preserve Defendants' right under CCP § 425.16(f) to renew or re-target a special  
16 motion against the SAC within sixty days (or on terms the Court deems proper).
- 17 2. **Order B (consolidated TAC – preferred for judicial economy).** Direct Plaintiff to lodge,  
18 on a timeline the Court sets (including by close of business April 30, 2026, in this action if  
19 the Court so orders), a single consolidated Third Amended Complaint in lieu of sequential  
20 SAC and TAC proceedings; upon lodging, order the consolidated TAC filed as the operative  
21 pleading; treat the pending Special Motion to Strike against the FAC as addressed to a super-  
22 seded pleading; preserve Defendants' § 425.16(f) sixty-day renewed-motion right (and later  
23 discretion) to renew or re-target against the consolidated TAC.
- 24 3. **Order C (SAC now, TAC on reset calendar).** Grant SAC leave today and set the contingent  
25 TAC motion on a regular calendar, with a date certain for the pleading cycle to close; treat  
26 the pending Special Motion to Strike against the FAC as addressed to a superseded pleading  
27 with § 425.16(f) expressly preserved.
- 28 4. **In the alternative**, if the Court has any concern about the notice period, **continue** the hearing

1 for the minimum period necessary to cure that concern under CCP § 1005(b), rather than deny  
2 the motion on procedural grounds. Plaintiff consents to any such continuance.

- 3 5. **Reserve**, as in all matters before this Court, Plaintiff's rights (a) to seek mandatory attorney  
4 fees and costs under CCP § 425.16(c)(1) upon denial of Defendants' Special Motion to Strike;  
5 (b) to proceed under CCP §§ 128.5 and 128.7 on completion of the twenty-one-day safe-  
6 harbor windows opened on April 17 and April 20, 2026; and (c) to present any further Evid.  
7 Code § 356 material required to complete the record against the O'Connell Declaration.

8 Dated: April 29, 2026

9 Respectfully submitted,

10 /s/ Franciscus Dylan Rosario

11 **FRANCISCUS DYLAN ROSARIO** Plaintiff, In Pro Per 7624 Melody Drive Rohnert Park, CA  
12 94928 Tel: 650.488.7510 Email: soltrinox@gmail.com

Dated: April 29, 2026



/s/ *Franciscus Dylan Rosario*

**FRANCISCUS DYLAN ROSARIO**  
Plaintiff, In Pro Per

7624 Melody Drive  
Rohnert Park, CA 94928  
Tel: 650.488.7510  
E: soltrinox@gmail.com

## **CERTIFICATE OF WORD COUNT (CRC 3.1113(F))**

The undersigned hereby certifies, pursuant to California Rules of Court, rule 3.1113(f), that the text of this Reply, including footnotes but excluding the caption page, table of contents, table of authorities, signature block, certificate of word count, and proof of service, contains fewer than 7,000 words as counted by the word-processing software used to prepare it (approximately **4,900 words**).

Dated: April 29, 2026

/s/ Franciscus Dylan Rosario

**FRANCISCUS DYLAN ROSARIO** Plaintiff, In Pro Per

## **PROOF OF ELECTRONIC SERVICE (CCP § 1010.6; CRC 2.251)**

I, Franciscus Dylan Rosario, declare:

1. I am the Plaintiff in pro per in the above-captioned action. My address is 7624 Melody Drive, Rohnert Park, California 94928. I am over the age of 18. I caused the following document to be served on the parties listed below:

**PLAINTIFF’S REPLY IN SUPPORT OF MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT, AND OPPOSITION TO DEFENDANTS’ APRIL 23, 2026 OPPOSITION AND DECLARATION (CGC-25-631802)**

2. On April 29, 2026, I served the foregoing by electronic service pursuant to Code of Civil Procedure § 1010.6 and California Rules of Court, rule 2.251, addressed as follows:

| Party / Role                                                                 | Counsel                                  | Email                     |
|------------------------------------------------------------------------------|------------------------------------------|---------------------------|
| CSAA Insurance Exchange;<br>and Does 1 through 50,<br>inclusive (Defendants) | Chad S. Tapp, Esq. (SBN<br>214898)       | ctapp@porterscott.com     |
| CSAA Insurance Exchange;<br>and Does 1 through 50,<br>inclusive (Defendants) | Tyler J. O’Connell, Esq. (SBN<br>346673) | toconnell@porterscott.com |

| Party / Role                                                                 | Counsel                               | Email                     |
|------------------------------------------------------------------------------|---------------------------------------|---------------------------|
| CSAA Insurance Exchange;<br>and Does 1 through 50,<br>inclusive (Defendants) | Monique Schubert (Legal<br>Assistant) | mschubert@porterscott.com |

Service addresses are the electronic service addresses identified by Defendants' counsel on their April 10 and April 23, 2026 filings in this action.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 29, 2026, at Rohnert Park, California.

/s/ Franciscus Dylan Rosario

**FRANCISCUS DYLAN ROSARIO** Plaintiff, In Pro Per